8.

CASE #	CASE NAME	HEARING NAME
CVRI2600447	ABITO VS BRUNK'S STEAKHOUSE INC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Moving party: Defendant Brunk's Steakhouse, Inc. ("Defendant")
Responding party: Plaintiff Ryan Abito ("Plaintiff")

This matter was heard on May 13, 2026. The Court continued the matter to June 5, 2026 and stated that Defendant was to file a Supplemental Reply brief (having the benefit or receiving the Abito Declaration) by May 21, 2026. Plaintiff was ordered to file a Response to the Defendant's Supplemental Reply Brief by May 29, 2026.

On May 21, 2026, Defendant filed a Supplemental Reply and exhibits. On May 29, 2025, Plaintiff filed a Supplemental Opposition.

The matter was continued to June 26, 2026 as the May 29, 2026 documents were not available for review prior to the June 5, 2026 hearing.

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I. Supplemental Briefs on Existence of Arbitration Agreement

A. Defendant's Supplemental Reply

In the Supplemental Reply, Defendant contends it has now provided direct percipient testimony, contemporaneous business records, corroborating employee declarations, representative onboarding records, and a master summary chart of onboarding files showing that the arbitration agreement was part of the standardized July 2025 onboarding process. (See Supplemental Brunk declaration and supporting documents.)

However, as explained at length in the Supplemental Opposition, the supplemental evidence does not cure the evidentiary concerns previously identified by the Court. It does not establish that Plaintiff entered into a valid and enforceable arbitration agreement as part of his onboarding as General Manager.

B. Plaintiff's Supplemental Opposition explains how Defendant has not established the existence of an arbitration agreement in the first instance

To begin with, Plaintiff accurately contends that the Court's tentative ruling was unambiguous:

> "The logical inference from these anomalies — an impossible date, unrecognizable signatures, and a CEO declaration offering not a single fact

about when or how any signing occurred — is that the document was fabricated." (Tentative Ruling, p. 5.)

Plaintiff provides a comprehensive explanation of how the Supplemental Reply does not cure the court's conclusion but instead buries it under paper.

In the Supplemental Reply, Defendant's CEO, Nicole Brunk submits a new declaration with 125 new paragraphs, a July 15, 2025 recap email, Indeed screenshots, employee declarations, onboarding charts, and comparator files. However, NOT included in all of this is a single sentence in which Ms. Brunk states that she watched Ryan Abito sign the Voluntary Arbitration Agreement. This is the main problem with sending this matter to arbitration.

In new ¶¶ 48-50 of her Reply declaration, Ms. Brunk declares:

¶48. Plaintiff did not deny executing the arbitration agreement prior to filing his opposition to Defendant's Motion to Compel Arbitration.

¶49. Plaintiff's assertion that he did not execute onboarding documentation is inconsistent with:

- his participation in onboarding,
- his role in training employees, and
- Defendant's uniform onboarding process requiring completion of employment documentation.

¶50. Based on the onboarding process described above and Plaintiffs participation in that process, it is my understanding that Plaintiff completed the onboarding documentation required of employees, including the arbitration agreement.

Plaintiff contends that ¶¶ 49 and 50 are fabricated and never occurred. Plaintiff contends that the signatures of all disputed documents are not his, and the character strings "ABIN. MV" and "ABITV . RM" do not correspond with his name, his initials, any abbreviation he has ever used, or any version of his signature in any context. (Supp. Abito Decl., ¶¶ 5, 13, 15, 24.)

Plaintiff further points out that he provided a concrete, verifiable, and unrebutted handwriting identification: he uses exclusively a discontinued blue Sharpie Marker Pen, 0.7 bold thickness, for all professional writing. (Supp. Abito Decl., ¶ 16.) Defendant's exhibits are black-and-white reproductions. A black-and-white scan cannot show the distinctive blue color of Plaintiff's pen. Any document Plaintiff actually signed would bear that pen's distinctive line weight and color. (Supp. Abito Decl., ¶ 17.) The absence of color originals is itself corroborating evidence that these documents are not authentic.

The supplemental opposition makes the following points (summarized here, but explained comprehensively in the document):

1. Ms. Brunck still does not state that she watched Plaintiff sign the arbitration agreement. In her supplemental declaration, ¶47, she claims that she "personally observed Plaintiff sign new hire paperwork, including

paperwork for new hires in his capacity as General Manager and his own onboarding paperwork as an employee." She says "onboarding paperwork as an employee" — not the arbitration agreement.

In her initial reply declaration, Ms. Brunk identified exactly three documents she claims to have witnessed Plaintiff sign: "his new hire checklist, Notice to Employee under Labor Code section 2810.5, and Employee Acknowledgment of California Break and Rest Period Policy." The arbitration agreement was not on that list. It remains off the list in the supplemental declaration. The word “including” in ¶47 is not a substitute for the specific percipient testify the Court required.

Also, the Court notes that Plaintiff declares the opposite under oath: Nicole Brunk was not physically present when he signed any of his employment documents, he was never given an employment packet to complete as an employee, and he specifically did not sign the arbitration agreement. (Supp. Abito Decl., ¶¶ 5, 24.) Under *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158,170, authentication requires a declarant who can "explain how she knew" the employee signed the specific document. Brunk still cannot explain that. She was not there for the signing she is trying to prove.

2. *Brunk’s hire date error*. In ¶5 of Brunk’s supplemental declaration, she states that Plaintiff’s "employment began <u>August 17, 2025</u>." Every onboarding document Defendant submitted in Exhibit B — the New Hire Checklist, the EDD DE-4, the Notice to Employee, and the Break/Rest Period Acknowledgment — shows a hire date of <u>July 17, 2025</u>, not August 17, 2025. (See Declaration of Brendan Burton in Support of Supplemental Brief ("Burton Decl.") ¶ 9.) Nicole Brunk is off by a month on her own employee's start date — in the same declaration in which she claims to have personally witnessed that employee's onboarding conduct on that very date. If she cannot accurately state when Ryan started working from documents in her possession, the Court cannot credit her assertion that she personally observed his execution of a specific document on that same date.

3. The July 15, 2025 daily recap email omits the arbitration agreement. Defendant submits the July 15, 2025 "Daily Recap" email as corroboration that the arbitration agreement was part of the standard onboarding packet. (Supp. Brunk Decl., ¶¶ 58–67.) But the email specifically enumerates the onboarding documents for Thursday's FOH training: "1-9, W-2 Sexual Harassment, Employee Handbook, Acknowledgement form, Wage and Offer Letter, meals and breaks." (See Burton Decl. ¶ 4.) The Voluntary Arbitration Agreement does not appear. Plaintiff, who received this email in his capacity as General Manager preparing for onboarding, confirms the arbitration agreement's absence from the list and notes it is consistent with his recollection that the arbitration agreement was not a document he administered or distributed during onboarding. (Supp. Abito Decl., ¶ 35.)

Defendant's corroborating email specifically undermines the argument it was offered to support.

4. Plaintiff Ryan's new hire checklist is facially incomplete and bears anomalies. Ryan Abito's New Hire Checklist shows that the "Harassment/Discrimination Agreement" and "I-9 Form" boxes in the HR Paperwork Audit section are NOT checked. (See Burton Decl. ¶ 5.) If the onboarding process was uniform and complete — as Defendant repeatedly insists — how did two required documents go unchecked for the General Manager? The answer Plaintiff provides is more consistent: Nicole Brunk was responsible for checking the HR audit boxes, not Ryan. Ryan never completed his own checklist because he was never personally onboarded through the employee process. (Supp. Abito Decl., ¶¶ 6, 21.) Also, the "Emergency Contact" field on his New Hire Checklist reflects only the word "Wife" with no name, no telephone number, and no other identifying information. If he had completed that field himself, he would have written his wife's name and contact number. The absence of any identifying information is consistent with someone else having completed that section without knowing who his emergency contact is. (Supp. Abito Decl., ¶ 22.)

5. Ryan's I-9 form does not exist. Plaintiff does not recall completing or signing an I-9 during his employment, does not recall providing identification documents as part of any formal onboarding process, and would be surprised if a properly completed I-9 for him exists. (Supp. Abito Decl., ¶ 31.) Consistent with this, the "I-9 Form" box on Ryan's New Hire Checklist is not checked. The Court is aware that the I-9 is federally required and carefully documents all employment forms — it requires a physical inspection of government-issued identification documents and a signed certification by an authorized employer representative. If Brunk's uniform onboarding process was as she describes, Ryan's I-9 should exist. Defendant has not produced it. Plaintiff requests the Court order Defendant to produce his complete employee file. If Defendant cannot produce his government-issued ID, Food Handler's Certificate, ServSafe certification, and completed I-9 — documents any employer is required to collect and retain — that failure directly corroborates Plaintiff's declaration that he was never formally onboarded. (Supp. Abito Decl., ¶ 38.)

6. The Indeed account was shared – Ryan's messages do not authenticate his signing. The Indeed message screenshots in Exhibit D show two email addresses associated with the employer account: "bww.ryanabito@gmail.com" and "nbrunk649211@gmail.com," with the account displayed as "Brunk's Butchery." (See Burton Decl. ¶ 6.) This was a shared employer restaurant account to which Nicole Brunk also had access and which she also used. (Supp. Abito Decl., ¶ 33.) The fact that messages were sent from this shared account inviting job applicants to orientation does not establish that Ryan Abito personally composed each message or that it has any bearing on whether he signed his own

arbitration agreement. His use of the restaurant's recruiting account to schedule an orientation is a reflection of his GM hiring responsibilities — not evidence of execution.

7. The disputed signatures are verifiably not Plaintiff Ryan's handwriting. Plaintiff has submitted authenticated writing samples from his employment at Brunk's Steakhouse — including a Witness/Team Member Statement Form dated August 6, 2025, completed in his own handwriting using his distinctive blue Sharpie Marker Pen 0.7. (Supp. Abito Decl., ¶ 16, Exh. A.) The Court can compare those samples to the signatures on the disputed documents. Plaintiff identifies with precision how he signs and prints his name: "Ryan Abito" with a distinct capital "R" and capital "A" when signing as manager, or "Ryan Abito," "R. Abito," or all-capital-letter printing when printing his name for himself. (Supp. Abito Decl., ¶ 14.) None of these styles produce "ABIN . MV," "ABITV. RM," or "ABITURM." Those character strings do not resemble his name, his initials, any abbreviation or shorthand he has ever used, or any signature or printing style he has used in any professional or personal context. (Supp. Abito Decl., ¶ 15.)

   Defendant's counter that Ryan had "multiple variations" of his signature is an inadmissible lay opinion offered by the accused wrongdoer, not a forensic document examiner. **Plaintiff asks the Court to order production of the original documents in color for comparison, or direct the parties to submit the disputed signature and Plaintiff's authenticated samples to a court-appointed forensic document examiner before ruling.** Resolving a disputed signature question against the non-moving party without expert analysis, on the basis of the accused's own lay opinion, is reversible error under *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 48.)

8. Brunk's ¶¶ 49-50 "fabricated" conversation in supplemental declaration. Brunk claims in Paragraphs 49 and 50 of her supplemental declaration that she asked Ryan about the arbitration agreement during onboarding, and that he responded that arbitration agreements were "common practice for businesses" and "not a big deal." Plaintiff declares under penalty of perjury that this conversation never occurred. Plaintiff claims that at no time during his employment did Nicole Brunk ask him about the arbitration agreement, discuss it with him, or raise the topic of arbitration with him in any context. He never told her or anyone at Brunk's Steakhouse that any arbitration agreement was "not a big deal" or that arbitration was common practice, because that conversation simply never happened. (Supp. Abito Decl., ¶ 23.) This is a "he said, she said" situation, but given Brunk's testimony is uncorroborated, the issue weighs in favor of Plaintiff.

9. "Plaintiff's sophistication" argument fails. Defendant argues that Ryan's role in administering onboarding makes his denial implausible because "the very person responsible for creating, assembling, distributing, explaining, collecting, and maintaining onboarding packets somehow did

not execute the arbitration agreement." (Supp. Reply, p 6.) This argument actually strengthens Plaintiff's position. Ryan confirms he helped develop the onboarding packet's content and structure in partnership with Nicole Brunk. He was the person who sat with other employees and walked them through each form. He was the person who collected and turned over completed packets. (Supp. Abito Decl., ¶¶ 3–6.)

Because Ryan was the person administering the onboarding process for others, he is uniquely positioned to testify about what that process looked like and to recognize that he was never on the receiving end of it as an employee. He was never personally given a packet to complete, never personally walked through the forms by anyone else, and never administered his own onboarding process in the way he administered it for others. (Supp. Abito Decl., ¶ 5.) His intimate familiarity with the process makes his denial more credible, not less. He knows exactly what the process looks like — and he knows it was never done for him. (*Brockman v. Kaiser Foundation Hospitals* (2025) 114 Cal.App.5th 569, 585, 337 Cal.Rptr.3d 281 [sophistication as to arbitration concepts does not substitute for evidence that this specific employee signed this specific agreement].)

10. Nicole Brunk history of evidence tampering. According to Plaintiff, Nicole Brunk engaged in spoliation of evidence. Per Plaintiff, Nicole Brunk required Plaintiff, under significant pressure and intimidation, to open his personal laptop and delete files she deemed "company related." The deleted materials included his written employment agreement, payroll records, spreadsheets, correspondence, and other files. His written employment agreement — reflecting his $3,000 bi-weekly salary at opening, later increased to $3,500 — was among the documents destroyed. The Grant Jacobs offer letter and related email were similarly deleted. (Supp. Abito Decl., ¶¶ 27–28.)

11. Employee declarations. Defendant leans heavily on the seven employee declarations, characterizing them as "percipient witnesses" who "directly contradict" Ryan's denial. (Supp. Reply, p. 5.) But not one of those declarants states they personally witnessed Ryan Abito sign the Voluntary Arbitration Agreement. (See Burton Decl. ¶ 11.) They place Ryan in the room at onboarding, in a leadership role, distributing and collecting paperwork. Plaintiff does not deny any of that. He was in the room. He was leading onboarding for other employees. That was his job. What those employees observed was Ryan administering their process — not his own. (Supp. Abito Decl., ¶ 7.)

Based on the above, there is enough for the Court to deny this motion on grounds that the existence of an agreement to arbitrate has not been established. **For this reason, the motion to compel arbitration is denied.**

II. Issue of Unconscionability

Plaintiff argues in the alternative that the arbitration agreement is procedurally and substantively unconscionable. A contract is unenforceable if it is unconscionable. (Civ. Code § 1670.5.) “The doctrine of unconscionability contains two components: procedural unconscionability and substantive unconscionability.” (*Fitz v. NCR Corp.* (2004) 118 Cal.App.4th 702, 713.) Both must “be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) The procedural element focuses on oppression and surprise due to unequal bargaining power. (*Ibid.*) The substantive element focuses on overly harsh or one-sided results. (*Ibid*.) The core concern of the unconscionability doctrine is the absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1145.) The unconscionability doctrine ensures that contracts, particularly contracts of adhesion, do not impose terms that have been variously described as overly harsh. (*Ibid*.)

A. The Agreement is not Procedurally Unconscionability

Plaintiff contends that he was given no time to review the agreement, no opportunity to consult counsel, no explanation of its terms, and was never even told it existed. (Declaration of Brian Abito (“Abito Decl.”), ¶¶ 3–11.) Plaintiff contends that the agreement's acknowledgment in Section 7 that Plaintiff "had the opportunity to read this Agreement, ask questions, and consult an attorney" is belied by every fact in this record. (Abito Decl., ¶¶ 3–8.) Plaintiff claims that the recitation is illusory. Additionally, the agreement incorporates the AAA Employment Rules and JAMS Rules by reference without attaching either set of rules, a recognized factor supporting procedural unconscionability. (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 692 ["[A]n arbitration clause's failure to attach arbitration association rules incorporated by reference could be a factor in support of a finding of procedural unconscionability."); (Declaration of Brendon Burton (“Burton Decl.”), ¶ 10; Abito Decl., ¶ 9.)

However, as noted by Defendant, Plaintiff’s unconscionability argument is internally inconsistent with his formation argument. Plaintiff claims he was never shown the agreement, never asked to sign it, and knew nothing about it. Those allegations, if credited, address formation - not procedural oppression. He cannot simultaneously claim the agreement was never presented and that the circumstances of presentation were oppressive.

Regardless, the agreement expressly states that it is voluntary, that signing does not affect hiring, continued employment, or benefits, and that the employee had the opportunity to read the agreement, ask questions, and consult an attorney. (Brunk Decl. in support of motion, Ex. A.) Plaintiff was not a vulnerable, unsophisticated employee confronted with hidden terms. Defendant's evidence shows he was General Manager, directly involved in onboarding, and familiar with the same documents provided to employees.

B. The Agreement is not Substantively Unconscionable

Plaintiff contends that the agreement is substantively unconscionable because (1) the “voluntary” label is illusory; (2) the discovery provision is inadequate; (3) incorporated rules were never disclosed; (4) no arbitrator selection mechanism exists; (5) the handbook integration contradicts contractual obligation; (6) the agreement is permeated with unconscionability and severance is inappropriate.

Here, the agreement is substantively fair. It is mutual and bilateral:

- The agreement requires both the Company and the Employee to arbitrate covered employment disputes;
- The agreement provides for AAA Employment Rules or JAMS by mutual agreement;
- The agreement requires that the Company pay for arbitration costs including arbitrator fees and forum fees except for a filing fee not exceeding the cost of a court filing;
- The agreement permits all remedies available in court;
- The agreement preserves the right to counsel;
- The agreement expressly allows discovery – there do not appear to be limitations imposed.

Further, Plaintiff contends that the AAA/JAMS rules were not attached to the agreement, but this does not mean the agreement is unconscionable. The agreement identifies the forum rules and includes the core protections required for employment arbitration: employer-paid arbitration costs, available remedies, counsel and discovery. Here, Plaintiff does not identify any hidden rules that change the bargain or imposes unfair terms. Also, as noted by Defendant, there is no fatal absence of an arbitrator selection mechanism. The agreement identifies the AAA Employment Rules, and AAA has already begun administering the Abito arbitration subject to Plaintiff’s jurisdictional objection. Plaintiff cannot contend that there is no mechanism while simultaneously objecting to Defendant’s attempt to proceed through the identified forum.

Summary:

Motion to compel arbitration is denied.